

7.	24CV2747	DEMEYER v. PALASHEWSKI
Motion to Strike/ Motion to Quash		

Motion to Strike Complaint

Defendant has filed a “Motion to Strike/Quash Legal Ethics Perspective, Filing Frivolous Cases, Factual Contentions, Sanctions Against Frivolous Filings and Malicious Prosecution”.

The Complaint alleges Unfair Competition (Civil Code § 1770), Tortious Interference with Contract, Tortious Interference with Prospective Economic Advantage, and Defamation.

Defendant’s requested relief is to dismiss the Complaint as false. The legal basis for the motion include Code of Civil Procedure §§ 128.5 and 128.7 (frivolous pleadings), Government Code § 12650-12656 (False Claims Act), Code of Civil Procedure § 425.16 (SLAPP Act), California Rules of Professional Conduct and Federal Rule of Civil Procedure § 11.

Plaintiff opposes the motion on the basis of timeliness. First, motions to strike a pleading must be filed within the time provided for responding to the pleading. Code of Civil Procedure § 435(b)(1). A challenge to the Complaint was required to be filed within the time provided to file an Answer, which is 30 days following service of the Summons and Complaint. Code of Civil Procedure § 412.20. The Complaint was personally served on December 12, 2024, and Defendant’s motion was filed on March 20, 2026, long after the time for filing an Answer.

Code of Civil Procedure § 425.16(f) authorizes a motion to strike under that section to be brought within 60 days of the offending pleading. The time for challenging the December 12, 2024, Complaint under that section expired on February 10, 2025, and this motion was filed more than a year later.

Requesting sanctions for frivolous pleadings under Code of Civil Procedure §§ 128.5 and 128.7 requires a 21-day notice of intent to file such a request, which was not given in this case.

Plaintiff further argues that Defendant failed to meet and confer prior to filing the motion as required by Code of Civil Procedure § 435.5.

The Court further notes that the Federal Rules do not apply to this state court case, and the Rules of Professional Conduct are enforced by the California State Bar.

As to the allegations that the statements in the Complaint are false and violative of the False Claims Act (Government Code § 12650, *et seq.*), those statutes create a right to file a lawsuit addressing conduct that claims to be in violation of those statutes. Although Defendant has filed a Cross-Complaint, the Cross-Complaint does not include any allegation of statutory violations. Nor does the motion include any specific factual allegations of falsity. Instead, the

motion contains conclusory statements that the factual allegations of the Complaint are false and without merit.

In short, the Court has no basis for granting the motion.

Motion to Strike Amended Answer

On January 28, 2026, Plaintiff filed a motion to strike portions of the Answer filed by Defendant on December 19, 2025. That motion was scheduled for hearing on April 3, 2026, but was continued by the Court to May 1, 2026.

Defendant filed an amended Answer on March 30, 2026. Accordingly, Plaintiff's motion to strike portions of the December 19, 2025, Answer is moot.

TENTATIVE RULING #7: DEFENDANT'S MOTION TO STRIKE/QUASH THE COMPLAINT IS DENIED. PLAINTIFF'S MOTION TO STRIKE PORTIONS OF DEFENDANT'S DECEMBER 19, 2025, ANSWER IS MOOT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.